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LINE 2

23-CIV-01887 CHARLES KING VS. ERIC STUART, ET AL.

CHARLES KING
ERIC STUART

PRO SE

PLAINTIFF'S MOTION TO CONTEST TENTATIVE RULING AND PROPOSED ORDER TO VACATE SANCTIONS

TENTATIVE RULING:

On June 2, 2026, the court heard the first of two motions to contest. The court noted that for the June 2, 2026 and this motion which was filed on March 30, 2026, there were no proofs of service. No proof of service has been filed since then.

California Rules of Court 3.1300 requires that “proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” Without the proof of service being filed, there is no evidence that defendants have been properly served with the motion and the court lacks jurisdiction to hear the motion. “[P]roof of service fulfills the function of establishing that ‘procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.’ (*West v. West* (1979) 92 Cal.App.3d 120, 124, 154 Cal.Rptr. 667.) Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. (*Ibid.*) That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act. (*Ibid.*)” (*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420.)

Thus, defendants do not have proper notice of the hearing and the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

If the tentative ruling is not contested, it will become the order of the court without the need for a formal order.

2:00 PM

LINE 3

23-CIV-05931 AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL PERSONS SIMILARLY
SITUATED VS UNIVERSITY HEALTHCARE ALLIANCE

AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL
PERSONS SIMILARLY SITUATED
UNIVERSITY HEALTHCARE ALLIANCE

ANDREW G. RONAN

RACHEL WINTTERLE

MOTION FOR FINAL APPROVAL OF CLASS SETTLEMENT AND AWARD OF ATTORNEYS' FEES, COSTS AND SERVICE
AWARDS

TENTATIVE RULING:

The court rules on plaintiff's unopposed motion for final approval of class action settlement and award of attorneys' fees, service award and costs as follows:

The Court Grants Approval of the Settlement

In a written order dated February 19, 2026, the court granted preliminary approval to this class and PAGA (Private Attorney General Act) settlement. The action alleges wage and hour violations. The complaint in this action was a class action brought by Amanda Nunez who then amended her complaint to add a PAGA cause of action. Plaintiff Marlisha L. James had filed a class action complaint in Alameda County Superior Court. Based upon the stipulation of counsel, James joined this lawsuit as a plaintiff and a second amended complaint was filed and is the operative complaint.

The settlement is for \$1,950,000.00 with \$40,000 of that amount for the PAGA claims. According to the declaration of the claims administrator, Madley Nava of Apex Class Action, LLC (Apez), there are 1,573 participating class members who worked 125,877 work weeks. (Nava Decl., ¶¶ 6, 15.) The settlement will provide a payment of \$30,000.00 to the California Labor and Workforce Development Agency (LDWA) (i.e., 75% of the \$40,000.00 amount allocated to resolve the PAGA allegations). The remaining \$10,000.00 shall be distributed amongst Aggrieved Employees. The LDWA has not objected to the settlement. The highest individual payment to a class member is estimated at \$1,591.45, the average is \$744.76, and the lowest is \$9.31. (Nava Decl., ¶15.)

In ruling on settlements involving class and PAGA claims, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“ ‘The court has a fiduciary responsibility
